

Court No. - 39

Case :- WRIT - C No. - 27665 of 2020

Petitioner :- Hans Raj Maurya And 2 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Janardan Yadav

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioners, learned Standing Counsel on behalf of State-respondent nos. 1 & 5 and Sri N.K. Tiwari, learned counsel appearing on behalf of respondent nos. 2,3 and 4.

The instant writ petition has been filed seeking following reliefs:-

" (i) issue, a writ, order or direction in the nature of certiorari quashing the impugned Demand Notice dated 23.8.2020 (Annexure No. 5 to the writ petition) issued under Section 3 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958.

(ii) issue, a writ, order or direction in the nature of mandamus commanding the Assessing Officer-respondent no. 3 to take appropriate steps and pass fresh orders in accordance with law complying the mandatory provisions of Section 126 of Electricity Act and the Electricity Supply Code-2005 after affording the opportunity of hearing to the petitioners as provided under law.

(iii) issue any other writ, order direction as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

(iv) award the cost of petition to the Petitioners."

Learned counsel for the petitioners submits that the petitioners have valid electricity connection and they are regularly depositing the electricity bills. However, Checking Authority had inspected the premises of the petitioners and made a report that they are indulged into theft of electricity, pursuant to which an FIR was lodged against them on 14.9.2017 U/s 135 of the Indian Electricity Act, 2003. Thereafter, neither any Provisional Assessment Notice nor any Final Assessment Notice were served upon them and merely on the basis of recovery citation notice dated 23.8.2020, they came to know that there are dues of Rs. 53,329/- against them. The petitioners cannot be compelled to deposit the said amount without serving the Provisional Assessment Notice or Final Assessment Notice by the respondent authority.

Learned counsel for the petitioners further submits that the petitioners have not been given any opportunity of hearing and as such, the recovery proceedings served upon them, is bad in the eyes of law. It is further contended that the respondents have not proceeded in accordance with the provisions contained in Section 126 (3) of the Act, 2003 and Clause 8.1 of the Electricity Supply Code, 2005 (in short 'Code, 2005') as no opportunity of hearing has been afforded to the petitioners.

Learned counsel appearing on behalf of Power Corporation i.e. respondent nos. 2, 3 and 4 submits that on the inspection of the premises of the petitioners, use of electricity by illegal means was found. Hence, an F.I.R was registered on 14.9.2017 and thereafter, Provisional Assessment Notice was issued on 29.7.2018 but there is nothing on record to indicate that whether the same was served upon the petitioners, or not.

At this stage, we deem it proper to reproduce paragraph 16 of the judgment passed in the case of **Shishir Jain vs. Paschimanchal Vidyut Vitran Nigam Ltd. and another, 2017 (3) AWC 3084**, by a Division Bench of this Court. The relevant paragraph 16 of aforesaid judgment reads as under :

"16. Be that as it may, in case there is no final assessment as suggested by the learned counsel for the respondent, the petitioner cannot be compelled to deposit the amount of provisional assessment. Without making final assessment after considering the objection and giving opportunity to the petitioner, he cannot be compelled to deposit any amount. In such circumstances, the two impugned notices dated 4.3.2017 issued by respondent no.2 are not liable to be sustainable and are hereby quashed."

In view of aforesaid, we are of the opinion that petitioners could not be compelled to deposit any amount on the basis of provisional assessment without affording any opportunity of hearing to them, while making any final assessment, that too without supplying the copy of the said order. The entire procedure adopted by respondent no.2 dehors the statutory provisions of Section 126 of the Act, 2003 and Clause 8.1 of the Code 2005. The Clause 8.1 of the Code, 2005 provides the procedure to be adopted by licensee for inspection, provisional assessment, hearing and final assessment in case of theft of electricity. Amount which is mentioned in the provisional assessment has been treated as final assessment without affording any opportunity of hearing, the same is in violation of principles of natural justice.

Considering the facts and circumstances of the case, but without entering into the merits of the case, this writ petition is **disposed of** directing the petitioner to move a fresh representation before respondent no.2 within two weeks' from today ventilating his

grievances and in case, such representation is moved, the same shall be considered and decided by respondent no.2 who shall pass an appropriate, reasoned and speaking order regarding final assessment after giving an opportunity of hearing to the petitioner, as expeditiously as possible, preferably within a period of four weeks' from the date of receipt of a copy of this order.

For a period of six weeks or till any final decision is taken on the representation of the petitioners, whichever is earlier, no coercive action shall be taken against them pursuant to recovery citation notice dated 23.08.2020.

It is made clear that if the petitioners fails to file the representation as indicated above, they shall not be entitled to get the benefit of this order.

Order Date :- 21.1.2021

Saurabh